

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 14, 2026 TIME: 8:30 A.M.

No. 25CV00613

JIMENEZ v FCA US, LLC

MOTION TO COMPEL INITIAL DISCLOSURES

This is a Song-Beverly, negligent repair, and fraud action filed on February 21, 2025, against defendants FCA US, LLC (“FCA”) and Watsonville Chrysler Dodge Jeep Ram. Plaintiff seeks to compel documents it asserts FCA did not disclose as required pursuant to Code of Civil Procedure section 871.26 and seeks \$2,500.00 in sanctions against FCA and its counsel.

In opposition, FCA contends plaintiff filed this motion without engaging in the meet and confer process and that it served disclosures and documents in a timely manner on or about June 23, 2025. (Opp. at p. 1.) FCA maintains it does have additional documents to produce but will provide them only after the execution of a stipulated protective order, which it circulated to plaintiff’s counsel on June 12, 2025. FCA contends that plaintiff’s counsel will not stipulate to the proposed protective order even though it has done so in other cases and is based upon the Los Angeles County Superior Court protective order model. (Decl. of Gavrilesco at ¶¶ 9-10, Ex. A.)

At the last hearing on June 8, 2026, plaintiff’s counsel requested a continuance because defendant had recently served the outstanding discovery and he sought time to review it. The parties are directed to appear to provide the Court with an update on the status of the discovery dispute.

No. 22CV00539

BRIGHT v. CALIFORNIA FAIR PLAN ASSOCIATION

PLAINTIFFS’ MOTION TO COMPEL DEFENDANT CALIFORNIA FAIR PLAN ASSOCIATION’S PMQ

The motion is granted as discussed below.

This is an insurance bad-faith case brought by the Brights (“plaintiffs” or “Brights”) against their home insurer, the California Fair Plan Association (“CFPA”). Plaintiffs contend that CFPA denied their insurance claim for damage to their home after the CZU-fires in 2020. Specifically, CFPA denied their claim on the grounds that there was no physical damage caused by the fire and that their loss was confined to smoke and ash, which was not covered. Plaintiffs contend that CFPA amended its standard policy language to re-define “direct physical loss”, requiring actual loss or physical damage. Plaintiffs’ assert CFPA told the Department of

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Insurance (“CDI”) that this would not result in changes to coverage but plaintiffs argue this change directly affected the denial of claims, including their own. CDI investigated the issue of fire-related smoke claims and, according to plaintiffs, in its Market Conduct Report, determined that CFPA’s practices were unlawfully restrictive and violated minimum coverage requirements. (MPA at p. 6.)

CFPA identified Estee Natale as the person most qualified (“PMQ”) to testify regarding claims administration and the denial of plaintiffs’ claims. Plaintiffs assert the deposition went forward but CFPA’s counsel instructed Ms. Natale to not respond to certain categories of questions. Plaintiffs now bring this motion to compel Ms. Natale’s testimony as to the following areas:

1. The California Department of Insurance Market Conduct Examination/Report. Plaintiffs assert they are entitled to question Ms. Natale concerning this subject because “CFPA’s response to DOI’s Market Condition Examination and its impact on the Brights’ claim is therefore plainly relevant and discoverable.” (MPA at p. 3.) Plaintiffs maintain this topic is discoverable because CFPA’s refusal to extend coverage for their claim after the Market Conduct Evaluation is evidence of bad faith. Plaintiffs argue that “[t]he Market Conduct Examination rests on DOI’s review of claims administered during the same time period as the Brights’ claim and addresses the exact policy language CFPA used to deny that claim.” (MPA at p. 7.) Plaintiffs maintain that they are entitled to testimony concerning the impact, if any, of the Market Conduct Report on its coverage decision as to the Brights’ claim. (MPA at p. 9.)

In opposition, CFPA asserts that the Market Conduct Report was issued more than 14 months after the denial of plaintiffs’ claims and so it cannot be relevant as a matter of law. CFPA argues that the Market Conduct Report is not a controlling judicial determination and there has been no order that CFPA mishandled claims or required CFPA to change its policy or practices. (Opp. at p. 6.) CFPA also contends that this Court previously denied plaintiffs’ request to depose a PMQ regarding the Targeted Market Conduct Examination Report.

(2) Claims administration and staffing of the Brights’ claim. Plaintiffs contend that “decisions to assign, replace, or remove adjusters are directly relevant to CFPA’s claims administration and to the coverage determinations in this case.” (MPA at p. 3.) However, during the deposition of Ms. Natale, counsel for CFPA “took the position that staffing decisions exceeded the scope of claims administration and blocked testimony on that subject, even though the adjuster’s recommendation for upper-management review was denied and the claim was subsequently denied without the requested reinspection of the property, despite the field adjustor having issued a reservation of rights and requested that reinspection.” (*Id.*) Plaintiffs argue that

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they are entitled to discover what occurred and why, during the handling of their claim. (MPA at p. 10.)

CFPA asserts that plaintiffs have deposed all the handlers who worked on plaintiffs' claim and so "[t]here is nothing a PMQ could possibly testify that would provide better information as to why these adjusters left the FAIR Plan." (Opp. at p. 11.)

II. DISCUSSION

"The party noticing the deposition may move for an order compelling discovery from a party deponent who fails to appear or answer questions ... and who does not have a valid objection under §2025.410(a). [CCP §2025.450(a).]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 8:532.) "No showing of 'good cause' is required on a motion to compel *answers* to *deposition questions*. (It makes no difference that the questioner was on a 'fishing trip' if the question was reasonably calculated to lead to admissible evidence." (*Id.* at § 8:532.2.)

Given that the questions here are limited to the handling of plaintiffs' claims, the Court finds that the proposed topics could be reasonably calculated to lead to the discovery of admissible evidence. Counsel for defendant is not foreclosed from raising objections to be preserved for trial. The Court does not find that the CFPA has met its burden in justifying their refusal to answer; therefore, the Court will permit plaintiffs to question the designated PMQ on these subject matters for no more than 1.5 hours. Further, the questioning is limited to these topics as applied to plaintiffs' claim only.

DEFENDANT'S REQUEST FOR JUDICIAL NOTICE

1. Order granting FAIR Plan's Motion for Protective Order. Denied; the Court does not need to take notice of the contents of its own file.
2. Order entered on April 10, 2024, denting the Motion to Consolidate filed by plaintiffs. Denied; the Court does not need to take notice of the contents of its own file.
3. Order to Show Cause, Notice of Hearing, Notice of Monetary Penalty, and Order to Cease and Desist issued by the California Department of Insurance to the FAIR Plan on July 31, 2025. Granted.